

**BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL
COMMISSION, GHAZIABAD (U.P.)**

CONSUMER COMPLAINT NO. _____ OF 2026

(Under Section 35 of the Consumer Protection Act, 2019)

IN THE MATTER OF:

Vikas Gandhi

...Complainant

VERSUS

ACKO General Insurance Limited

...Opposite Party

SYNOPSIS

1. The Complainant, a policyholder of the Opposite Party's Personal Health Policy No. ASHP202400001607 (Sum Insured ₹10,00,000), suffered acute urinary obstruction with active infection in June 2025 — more than seven months into the policy — and underwent an urgent Circumcision + Meatoplasty at RS Maitri Health Care, Ghaziabad on 20.06.2025, the very day of admission, at the hands of a super-specialist Urologist. The total hospital expense was ₹37,358/-.
2. The Opposite Party repudiated Claim No. 25062100350/1 on 26.06.2025 citing only the general 2-year "Specific Illnesses" waiting-period clause — without naming any listed condition, without obtaining any medical opinion, and without dealing with the exception contained in its own clause: "Any Surgery of the genitourinary system unless necessitated by malignancy." A day earlier, on 25.06.2025, it had even declared that the procedure "is not related to a malignancy" — five days before the histopathology report came into existence.
3. The biopsy dated 30.06.2025 confirmed Balanitis Xerotica Obliterans (Lichen Sclerosus), a medically recognised premalignant condition, upon a grossly suspicious "cauliflower like lesion". The treating uro-oncologist, Dr. Vaibhav Saxena, M.Ch. (AIIMS), has certified that the surgery "was must", that BXO is "a pre-malignant condition", and that without treatment there was risk of life-threatening infection and penile cancer. The Opposite Party has never produced any contrary medical opinion.
4. The Insurance Ombudsman, Noida (Award dated 02.07.2026), while dismissing the complaint in summary proceedings, recorded that medical necessity is undisputed and that the Permanent Exclusion clause is inapplicable, and granted liberty to approach any other forum. The controversy is thus narrow: whether surgery for a biopsy-confirmed premalignant condition falls within the exception "unless necessitated by malignancy". The evidentiary gap noted by the Ombudsman no longer exists — the treating specialist's certificate and standard medical literature are now on record.



5. The repudiation — mechanical, non-speaking and contrary to the insurer's own clause and record — constitutes deficiency in service under Section 2(11) and unfair trade practice under Section 2(47) of the Consumer Protection Act, 2019. The Complainant seeks ₹37,358/- with interest @ 12% p.a. from 26.06.2025, ₹1,00,000/- compensation for mental agony and harassment, and ₹25,000/- costs.



LIST OF DATES AND EVENTS

Date	Event	Annexure
04.11.2024	ACKO Personal Health Policy (Standard Plan, Family Floater) No. ASHP202400001607 issued after underwriting; Sum Insured ₹10,00,000; premium ₹31,065 p.a.; period 04.11.2024–03.11.2025. Proposal Form records “No medical conditions”; only PED declared — Obesity. Policy Schedule records “Permanent disease exclusion: No exclusion”.	C-1, C-2
Nov 2024 – Jun 2025	All premium instalments paid on time; policy continuously in force.	C-3
20.06.2025	Complainant admitted to RS Maitri Health Care, Ghaziabad at 06:58 hrs with acute urinary obstruction (“POOR FLOW OF URINE”) and infection; Circumcision + Meatoplasty performed the same day under spinal anaesthesia by Dr. Vaibhav Saxena, M.Ch. (Urology); IV fluids and IV antibiotics administered; excised tissue sent for histopathology.	C-4
21.06.2025	Discharged in stable condition; total hospital expenses ₹37,358/-. Reimbursement Claim No. 25062100350/1 lodged.	C-4, C-5, C-6
24.06.2025	Detailed representation/grievance sent to the Opposite Party (Ticket 12568674).	C-6
25.06.2025	“Update on Your Claim” e-mail rejects the claim asserting the procedure “is not related to a malignancy” — five days before the histopathology report existed; GRO rejects the representation in identical terms.	C-7
26.06.2025	Claim formally repudiated citing only the general “Specific Illnesses” 2-year waiting-period clause, without naming any listed condition and without dealing with the exception “unless necessitated by malignancy” contained in it.	C-8
30.06.2025	Histopathology Report, Max Lab, No. V-6630/25: gross “cauliflower like lesion 3.5 × 3 × 0.8 cm”; Impression: “Consistent with Lichen sclerosus (balanitis xerotica obliterans)” — a recognised premalignant condition.	C-9
Jul–Aug 2025	Appeals and grievances to the Opposite Party (Tickets 12582411, 12582412) — all rejected without dealing with the medical evidence.	C-10
07.08.2025	Complaint filed before the Insurance Ombudsman, Noida (NOI-H-056-2526-0961).	C-11
30.08.2025	Opposite Party itself renews the policy as No. ASHP202400001607R1 (04.11.2025–03.11.2026; Sum Insured ₹11,00,000), recording “First policy inception date: 04/11/2024”.	C-1 (colly.)
24.06.2026	Personal hearing before the Insurance Ombudsman.	C-11
02.07.2026	Ombudsman Award IO/NOI/A/HI/0061/2026-2027: complaint dismissed, but paras 13–14 hold medical necessity undisputed and	C-11

Date	Event	Annexure
	the Permanent Exclusion inapplicable; forwarding letter grants liberty to approach any other forum.	
12.07.2026	Treating super-specialist's Medical Certificate: surgery "was must" in view of inability to pass urine and UTI; biopsy confirmed BXO, "a pre-malignant condition"; risk of life-threatening infection and penile cancer if not treated.	C-12
14.07.2026	Grievance registered on the National Consumer Helpline (INGRAM) portal — Grievance No. 9719631 (in process).	C-10 (colly.)
15.07.2026	Opposite Party's GRO replies, reiterating verbatim the "waiting period" ground of 26.06.2025 without adverting to the biopsy report, the treating doctor's certificate, or the Ombudsman's findings.	C-10 (colly.)
___, ___.2026	Present complaint filed before this Hon'ble Commission.	—

Place: Ghaziabad

Date: 22.July.2026


COMPLAINANT

(Vikas Gandhi)